Noesis ten documents: what each is, version tracker, and where each stands

Versions tracked: **V1** 21 to 22 Oct; **V2** "For Final Revision", 3 to 4 Nov; **V3** "Draft for review", 8 Nov (Shane's decisions of 8 Nov). Statutory references are the documents' own and are not verified by Cuan. CRO numbers accepted as given.

#	Document	What it is, in plain terms	Cuan read	Main changes V1 to V2 (3 to 4 Nov)	Changed V2 to V3 (8 Nov)	Top blockers now (8 Nov)
1	Master Brief	Explanatory memo of the whole scheme (to partners, advisers); not an instrument.	V1, V2, V3	Five registered companies named; Odin Labs and Tairseach future; new cap table 86/8/6; Asterial 97/3; shares first, IP second, no valuation.	Asterial now 85/5/10 with share counts (850,000 A; 50,000 B; 100,000 non-voting B); R&D credit "at the rate in force" (30/35% clash gone); Sandbox, no grant-back, Future Rights Cut-Off, Ring 1 never outside the group added; title now "Corporate Architecture, Inter-Company Licensing & Governance Mandate".	Still dated 2 Nov; says it "binds" the companies but only Shane signs; "Privileged"; planned brands and **Kairos listed as group subsidiaries (Kairos is outside the group on Shane's chart)**; 8% "Class F / Class B" unsettled; Doc 10 signed Step 4; John is Counsel Lead and witness.
2	Control Sheet	The protocol: step order, live-company register, cap table, transfer locks, IP price.	V1, V2, V3	Valuation gate removed; four-step order; Mac Enterprises carve-out; seven transfer locks; IP price "1 or 10".	IP price one bracket (EUR 10, unapproved); Asterial 85/5/10; planned names removed; Cleanroom Sandbox.	IP price bracketed; tax route "dangerous"; s238 at Step 1 but inside Step 3 deeds; no Secretary; Doc 10 signed too late.
3	Asterial Constitution	Public constitution of Asterial Ltd (804907).	V1, V2, V3	Asterial Limited; three classes; 10-year sunset removed; 36-month moratorium; Noesis 970,000 A, Shane 30,000 B.	Share counts and percentages removed from the text (no 97/3); succession via Nominated Successor (Art 6.1); Founder secondary right (Art 6.5); non-existent Art 12.2 reference gone; review notes added.	No share capital stated (total or per class) though Art 7 refers to "maximum authorised share capital"; 75.5% floor with no formula, Art 11(b) gives 75%; Good Leaver undefined, leaver price 75% of fair value or nominal; "25% or more" vs "more than 25%"; seal block and Company Secretary unnamed.
4	Noesis Constitution	Public constitution of Noesis AI Agent System Ltd (805939).	V1, V2, V3	Four classes A, B, C, F; old voting "Partner" shares become non-voting B; leaver rules rewritten; dividend policy adjustable.	Percentages and share counts removed; Art 6.4 fixed; succession (Art 6.1); Mac Enterprises not named.	Brackets in Art 6.1(d); no authorised capital; Good Leaver undefined; subscriber and seal blocks; review boxes to strip.
5	Charter	Group charter: the five companies and the Founder.	V1, V2, V3	Parties widened to five live companies; Scenario B EUR 0 to 1 plus 36-month licence; arbitration; Mac Enterprises clause.	Scenario B EUR 1 plus 36-month SLA throughout; Sandbox; no grant-back; planned names out.	Step 1 and Step 2 recital conflict; arbitrator chosen by Class A Director; undefined Mac Enterprises and repositories.
6	Shareholders' Agreement	Private agreement among shareholders; executive awards; drag and tag.	V1, V2, V3	Widened to Noesis and Asterial; executive pathway set out; reverse vesting 36 to 12 months on half; drag/tag (Asterial only).	Scenario B EUR 1; Sandbox; 86/8/6 still stands; Y2/Y3 Class C arithmetic does not reconcile.	Undated; Good Leaver and leaver prices; circular references cl 1(b), 7(d); no vesting mechanics, pre-emption or NOESIS drag/tag.
7	IP Assignment	Shane and Velocity assign IP to Asterial.	V1, V2, V3	Price EUR 10 paid to the Assignors; Odin Labs and Tairseach seals removed.	IP price one bracket; Future Rights Cut-Off (cl 2.1); Sandbox.	No date; price and tax route; defective s238 approvals; "Assigned IP" undefined; contributor assignments missing.
8	Umbrella Licence	Asterial licenses IP to group companies; Ring 1 never outside the group.	V1, V2, V3	Quarantine gate; liability cap (12 months' royalties); Scenario B EUR 1 plus SLA.	Scenario B EUR 1 plus SLA throughout; "never licensed outside the group" stated with the Asterial Acquisition exception.	No payment, term, termination, confidentiality or GDPR Art 28 terms; empty service level; no rate card; Reg (EU) 2026/877 citation unverified.
9	Chain-of-Title and R&D Deed	Warranties of authorship and no open-source contamination; R&D deed.	V1, V2, V3	Widened; Shane and Velocity warrant sole authorship; Odin Labs removed.	IP price one bracket; Scenario B EUR 1; Sandbox.	Shane's personal uncapped warranties; no asset schedule; wrong tax sections; two companies bound but not signing.
10	Tax Schedule and Rider	Directive: tax steps in order, and the investor rider.	V1, V2, V3	Steps reversed (shares Step 2, IP Step 3 at EUR 10); Odin Labs and Tairseach removed; rider to 8 paragraphs.	IP price one bracket; Sandbox; Rider under Shane's review.	Tax model unfinished; only two of five companies seal; signed at Step 4 though it directs Steps 1 to 3; independent witness.

Comment: what Cuan tracks, and Pat's position

1. Is Cuan tracking Shane's changes?

Yes, version by version, with limits. I have read all ten at V1 and V2 (comparison written 4 and 5 Nov), and Documents 2 and 4 to 10 at V3 (8 Nov), compared with V2 and with my 5 Nov execution checklist. The table above is that record. On 9 Nov I also read Shane's **00 Review Note for Pat** (7 pages, 20 points), which I had previously only noted as unread.

Limits, stated plainly: (a) **Documents 1 and 3 at V3 were supplied by John on 9 Nov (after he pointed out he was blind-copied) and are now read, so all ten are covered at V3**; I had wrongly assumed John did not have them; (b) I read the text only: Drive comments, tracked changes and page images were not read; (c) I compared by reading, not by an automatic word-by-word comparison, so a small wording change could be missed; (d) I have the three dated versions, not every intermediate save by Shane; (e) statutory references and CRO numbers are Shane's and are not verified by Cuan. The Review Note says every change was checked by script and a second model and the citations verified against the Irish Statute Book: that is Shane's claim, not checked by Cuan.

Still to do: a proper automatic word-by-word V2 to V3 comparison for all ten, and a refresh of the fix list for Documents 1 and 3.

2. Pat and the ten documents

What Pat's email of 9 Nov says (13:47): he is going through every document "one by one", has read Shane's Review Note several times, and cannot tell which decisions or outputs are wanted from him.

What Pat has: Shane's 8 Nov email gave him all ten documents and the Review Note. Pat also produced his own pack on 28 Oct on earlier drafts, so it is not his first sight of the suite; I cannot tell how closely he read the 3 to 4 Nov or 8 Nov versions before today. He has **not** been given this tracker or Cuan's fix list.

Why his confusion is understandable (from the Review Note): it has 20 points under five headings (tax, company law, protections, drafting, citations). Each mixes tax, company law and drafting and gives a "proposed fix" that is assigned in turn to "the tax team", "Pat", "John" or "Shane" (for example point 7: John checks each register, John and Pat draft s. 193 resolutions; point 8: Pat advises; point 10: Pat confirms; point 12: Pat reviews the Rider; point 20: Pat recommends the Statutory Instrument wording). Nothing says which decisions are needed from Pat tomorrow, in what order, or by when. The document also says "With John and the tax team" but no tax adviser has been named.

What this tracker adds for him: what each of the ten is (column 3), what changed and when (columns 5 and 6), and the blockers by document (column 7). Together with Cuan's fix list (decisions, owners) it answers his request to "remove that uncertainty".

Decision for John: share this tracker and the fix list with Pat (cc Shane and Tom) before or at the start of tomorrow's meeting, after you have read both. This tracker omits your own position; your private review sheet stays with you.